

2018 SCC OnLine All 4521

In the High Court of Allahabad
(BEFORE SHASHI KANT GUPTA AND RAJIV GUPTA, JJ.)

Muneshwar Prasad Baranwal Petitioner;

v.

U.P. Power Corporation Ltd. and Another
Respondent.

Writ - C No. - 22691 of 2018

Decided on July 10, 2018

Advocates who appeared in this case :

Counsel for Petitioner:- Rajesh Kumar Dubey, Manoj Kumar Maurya

Counsel for Respondent:- Abhishek Srivastava, Kapil Dev Singh
Rathore

1. This writ petition has been filed, inter alia, for quashing the impugned recovery notice dated 26.5.2018 issued by the respondent no. 2.

2. Heard learned counsel for the petitioner and Mr. Kapil Dev Singh Rathor, learned counsel appearing on behalf of the U.P. Power Corporation.

3. Learned counsel for the petitioner submits that in the year 1990 the petitioner was granted electricity connection for running a Nalkoop. Later on, the said electricity supply was permanently disconnected by the electricity department vide order dated 27.5.1999. He further submits that after lapse of almost 19 years, the petitioner has been served with a notice on 26.5.2018 demanding a sum of Rs. 4,32,081.00/- as outstanding dues of electricity, whereas the electricity connection of the petitioner has already been disconnected about 19 years ago. Relying upon the provisions contained under sub clause (b) of Section 6.15 of the Electricity Supply Code, 2005, he further submitted that the said amount can not be recovered by the electricity department after lapse of such a long period. He further submits that since by order dated 27.5.1999, the electricity supply of the petitioner was permanently disconnected and thereafter the petitioner was neither having any electricity connection nor the electricity was being supplied to his factory, he can not be held liable to pay the aforesaid amount as mentioned in the impugned recovery notice for the period during which the electricity supply was permanently disconnected and the impugned notice is liable to be quashed by this court.

4. From perusal of the order sheet, it transpires that by order dated

5.7.2018, learned Standing Counsel was granted time to seek instructions in the matter but today he has stated that he has not yet received any instruction.

5. Considering the peculiar facts and circumstances of the case, we find that the submissions made by learned counsel for the petitioner, prima facie, have some substance.

6. The matter requires consideration.

7. Mr. Kapil Dev Singh Rathor, who has accepted notice on behalf of the electricity department, prays for and is allowed three weeks' time to file counter affidavit. Two weeks thereafter is granted to file rejoinder affidavit.

8. List thereafter.

9. Until further orders of this court, the operation of the impugned recovery notice dated 26.5.2018 issued by the respondent no. 2 shall remain stayed.

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